

9:00 AM

Line 5

26-CIV-03853 WILLIE UY VS. INTERSECT ENT, INC.

WILLIE UY
INTERSECT ENT, INC.

JOSHUA S FALAKASSA
CHERYL D. ORR

Defendant's Motion to Compel Arbitration

TENTATIVE RULING:

Defendant Intersect ENT, Inc.'s ("Defendant") unopposed Motion to Compel Arbitration is GRANTED.

Plaintiff Willie Uy ("Plaintiff") brings this action arising out of his former employment with Defendant. The Complaint alleges ten causes of action for discrimination, wrongful termination and other causes of action. Defendant seek to compel arbitration pursuant to the arbitration agreement entered into between Plaintiff and Defendant as part of Plaintiff's employment.

A court shall order the parties to arbitrate a controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that certain exceptions exist. (Code Civ. Proc., § 1281.2.) The party seeking arbitration bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754.) If the opposing party then raises a defense to enforcement, the opposing party bears the burden of producing evidence as to any fact necessary to that defense by a preponderance of the evidence. (*Ibid.*) If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute. (*Ramirez v. Golden Queen Mining Company, LLC* (2024) 102 Cal.App.5th 821, 830.)

Defendant meets its burden of showing that an agreement to arbitration Plaintiff's claims exists. This initial burden may be met by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. (*Iyere, supra*, 87 Cal.App.5th at p. 755, citing Cal. Rules of Court, rule 3.1330.) Defendant provides a copy of the arbitration agreement signed by Plaintiff. (Zacharias Decl., Exh. A.) The arbitration agreement is entered into between Plaintiff and Defendant and provides for arbitration of all claims or controversies between the parties, including discrimination, termination and claims for violation of any federal, state, or other governmental law, statute, regulation, or ordinance. (*Ibid.*) Thus, Defendant shows the arbitration agreement encompasses the claims alleged in Plaintiff's Complaint.

Since Defendant shows an agreement to arbitrate exists, Plaintiff then bears the burden of raising a defense to enforcement of the arbitration agreement. Plaintiff has not opposed this Motion and therefore fails to raise such a defense. As a result, the court finds it does not need to address Defendant's remaining arguments.

Plaintiff and Defendant are hereby ORDERED to arbitrate the claims in the Complaint pursuant to the arbitration agreement.

Although the court usually stays the court action upon ordering an action to arbitration, Defendant unusually did not move to stay this action as part of this Motion. (See Code Civ. Proc., § 1281.4 [“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”].) If parties appear they can orally move or stipulate to a stay of this case.

In the alternative, the Court has the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484. The Court thus will stay this case pending arbitration completion or until further Order of the Court. As such, the Case Management Conference scheduled for November 23, 2026 is continued to November 22, 2027 at 9:00 a.m., still before the Civil Commissioner / Courtroom H, on for status of arbitration.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6/UD Line 1

26-UDL-00884 DONNA KOPEC VS. ROBERTA WARNER, ET AL

DONNA KOPEC
ROBERTA WARNER

MARTIN M. EISENBERG
PRO SE

Plaintiff's Motion to Compel Answers to Interrogatories and Response to Demand for Production of Documents

TENTATIVE RULING:

Plaintiff Donna Kobec's Motion to Compel Answers to Interrogatories and Response to Demand for Production of Documents is CONTINUED to October 9, 2026 at 9:00 a.m. on the U.D. Law & Motion Calendar to allow curing of the defect indicated below.

As a preliminary matter, the proof of service filed with the motion fails to state what documents were served. (Aug. 27, 2026 Proof of Service, § 4.) While it states that the documents purportedly served are listed in an attachment to the proof, the attachment is missing. (See *id.*, *passim*.)

Therefore, the proof of service fails to set forth the exact title of the document served as required by subdivisions (a)–(c) of Code of Civil Procedure section 1013a in order to show proper service by mail pursuant to subdivision (a) of Code of Civil Procedure section 1013.

“Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act.” (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509.) Accordingly, the motion may be continued for Plaintiff to file a corrected Proof of Service with a proper attachment demonstrating that the motion was in fact previously served on Defendant, or heard if it is filed prior to the hearing..

In the alternative, if Plaintiff did not serve Defendant with this motion, then the motion will be DENIED without prejudice to a renewed motion being properly noticed, served, and supported by valid proof of service.

To address this procedural defect, this tentative is deemed contested and moving counsel is to appear (Zoom is ok).

Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7/UD Line 2

26-UDL-00894

THE JOHN STEWART COMPANY VS. MARIVIC BUSTOS

THE JOHN STEWART COMPANY
MARIVIC BUSTOS

MERCEDES A. GAVIN
PRO SE

Plaintiff's Motion to Compel Defendant's Responses to Plaintiff's Form Interrogatories – General, Set One, Plaintiff's Request for Production of Documents, Set One, to Deem Admitted Plaintiff's Request for Admissions, Set One, and Request for Sanctions Against Defendant in the Amount of \$585.00

TENTATIVE RULING:

Plaintiff The John Stewart Company's motion to compel responses to General Form Interrogatories (Set One), Unlawful Detainer Form Interrogatories (Set One), and Requests for Production (Set One) is GRANTED. Plaintiff's motion to deem unanswered requests admitted in its Requests for Admission (Set One) is also GRANTED.

Plaintiff's request for \$585.00 in sanctions against Defendant Marivic Bustos is GRANTED.

DISCUSSION

On August 3, 2026, Plaintiff served its General Form Interrogatories (Set One), Unlawful Detainer Form Interrogatories (Set One), Requests for Production (Set One) and Requests for Admission (Set One) on Defendant, via overnight mail. (Gavin Decl., ¶¶ 2-6.)

Defendant's responses were due on August 11, 2026. (*See* Code Civ. Proc., §§ 2030.260, subd. (b), 2031.260, subd. (b), and 2033.250, subd. (b) [providing five days to respond to discovery requests in unlawful detainer actions]; *see also* Code Civ. Proc., § 1013 [extending response time by two court days for service by overnight mail].) Defendant failed to serve responses by the deadline and still had not responded when Plaintiff filed this motion on August 25, 2026. (Gavin Decl., ¶ 7.)

a) Motion to Compel Responses

If a party to whom interrogatories and requests for production of documents are directed fails to serve timely responses, the propounding party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.2900, subd. (b), 2031.300, subd. (b).) Here, Defendant failed to respond to Plaintiff's discovery demands by the statutory deadline.

Plaintiff's motion to compel Defendant's responses to Plaintiff's General Form Interrogatories (Set One), Unlawful Detainer Interrogatories (Set One), and Requests for Production of Documents

(Set One) is GRANTED.

Defendant shall serve responses within five (5) days of notice of entry of this order.

b) Motion to Deem Requests for Admission Admitted

If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek and order that “the truth of any matters specified in the requests be deemed admitted.” (Code Civ. Proc., § 2033.280, subd. (b).)

Plaintiff seeks an order deeming the following matters from Plaintiff’s Requests for Admission (Set One) admitted:

1. Plaintiff The John Stewart Company is the authorized property manager who has authorization to sue and take the premises located at 415 Gateway Drive #38, Pacifica, CA 94044 back in its own name.
2. The current monthly rent for the premises located at 415 Gateway Drive #38, Pacifica, CA 94044 is \$1,249.00 per month.
3. On May 12, 2026, Plaintiff caused Defendant to be served a Notice to Pay Rent or Quit by posting a copy of the notice to Defendant at the premises and by mailing a copy to Defendant at the premises.
4. On June 11, 2026, the period stated in the Notice to Pay Rent or Quit expired at the end of the day.
5. You did not make payment in full to Plaintiff as required by the Notice to Pay Rent or Quit on or before June 11, 2026.
6. As of May 12, 2026, you owed Plaintiff at least \$3,747.00 in rent for the premises located at 415 Gateway Drive #38, Pacifica, CA 94044.
7. You failed to pay your monthly rent in full for the month of March 2026.
8. You failed to pay your monthly rent in full for the month of April 2026.
9. You failed to pay your monthly rent in full for the month of May 2026.
10. Defendant has never made a request for reasonable accommodation to Plaintiff regarding Defendant's disability.

(Gavin Decl., Ex. 4, RFA, Set One.)

Plaintiff’s motion to deem Plaintiff’s Requests for Admission (Set One) admitted is GRANTED.

c) Sanctions

“[T]he court shall impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel” a response to a discovery request, “unless it finds that that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

Similarly, “[i]t is mandatory that the court impose a monetary sanction . . . on the party . . . whose failure to serve a timely response to requests for admission necessitate[s] a motion” to deem the requests admitted. (Code Civ. Proc., § 2033.280, subd. (c).)

Sanctions imposed by the Court for failing to respond to an authorized method of discovery may include the reasonable expenses, including attorney’s fees, incurred by the opposing party as a result of the failure to respond. (Code Civ. Proc., § 2023.030, subd. (a).)

Here, Plaintiff seeks sanctions against Defendant in the amount of \$585.00, which includes attorney’s fees for 1.5 hours of work performed in bringing this motion, at a rate of \$350.00 per hour, and \$60 for the cost of filing this motion. (Gavin Decl., ¶¶ 8-10.) The Court finds Plaintiff’s request for sanctions reasonable.

Plaintiff’s request for sanctions against Defendant in the amount of \$585.00 is GRANTED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
